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It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

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No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 30, 2026

#	Case Name	Tentative
1.	30-2024-01446495-CU-FR-NJC WVJP 2021-4, LP vs. Tucciarone	Before the Court are two (2) motions: Motion to Compel Further Response to Production (ROA 153) and Motion to Compel Further Responses to Production (ROA 157). On March 20, 2026, Plaintiff WVJP (“Plaintiff”) filed Motion to Compel Further Response to Production (ROA 153) against Defendant Joseph Tucciarone (“Defendant Joseph”) and Motion to Compel Further Responses to Production (ROA 157) against Defendant Alex Tucciarone (“Defendant Alex”) (referred to collectively as “Defendants”). ROAs 153, 157. The only remaining disputes are Request for Production Nos. 7-13 as to Defendant Joseph and Request for Production Nos. 8, and 13-15 as to Defendant Alex. ROA 191.

		Plaintiff requests that the Court order Defendant Joseph further responses to the requests at issue and impose \$1837.50 in sanctions. ROA 153. Additionally, Plaintiff requests that the Court order Defendant Alex to provide further responses to the requests at issue and impose another \$1837.50 in sanctions. ROA 157. Defendants request that the Motions be denied in their entirety. ROAs 193, 195. I. Motion to Compel Further Responses and Meet and Confer Requirements Under California Code of Civil Procedure Section 2033.290, a motion to compel further responses to requests for production shall be accompanied by a meet and confer declaration. Cal. Civ. Proc. Code § 2031.310. Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; email alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). “A reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1439 (1998). Determining the adequacy of an attempt at informal resolution contemplates the exercise of judicial discretion. <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1294 (2024).
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The Court finds that Plaintiff's meet and confer declarations failed to provide sufficient facts showing a reasonable and good faith attempt to meet and confer either *in person*, *telephonically*, or by *videoconference*. The declarations also lacked an attestation regarding the retention of a certified shorthand reporter as required by Section 2016.040(b). Accordingly, the meet and confer declarations are procedurally deficient, and the Motions to Compel Further Responses to Request for Production (ROAs 153, 157) are **DENIED**.

II. Mandatory Sanctions

California Code of Civil Procedure Section 2031.310(h) provides that the court "shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . *unless* it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2031.310(h).

Here, the Court finds no substantial justification for Plaintiff's failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, Defendants did not seek sanctions, thus, the imposition of sanctions would be unjust.

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production (ROA 153) and Motion to Compel Further Responses to Request for Production (ROA 157) are **DENIED**.

Defendants to give notice.